

March 03, 2017



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 20389

EXPIRATION DATE: 2019-02-28

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: LG Chem
Seoul, South Korea

US AGENT: LG Chem Power Inc.
Troy, MI
United States

3. PURPOSE AND LIMITATION:

a. This special permit authorizes the transportation in commerce of prototype lithium ion cells by cargo-only aircraft. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.

b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.

c. No party status will be granted to this special permit.

d. This special permit serves as an approval under Special Provision A88 and A99 of the ICAO TI and as a "Competent Authority Approval" as defined under 49 CFR § 107.1.

4. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180 and the ICAO TI.

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5. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.101 Hazardous Materials Table Column (9B) in that lithium batteries may have a mass exceeding 35 kg per package and 173.185(a)(1) in that lithium ion cells need not be tested in accordance with the UN Manual of Tests and Criteria.
6. BASIS: This special permit is based on the application of LG Chem dated December 19, 2016 submitted in accordance with § 107.105 and the public proceeding thereon.
7. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Lithium ion batteries	9	UN3480	N/A

8. SAFETY CONTROL MEASURES:

a. OPERATIONAL CONTROLS -

(1) Only prototype lithium ion cells identified as BEV J1 (E66A) may be offered for transportation under the terms of this special permit.

(2) Cells must be offered for transportation at a state of charge no greater than 30 percent.

(3) All cells must be protected against short-circuiting.

b. TESTING - Cells must be of a type that has been proven to have met the requirements of T1 Altitude Simulation, T2 Vibration Test and T3 Shock Test of the UN Manual of Tests and Criteria.

c. PACKAGING -

(1) Inner Packaging - Tray, non-combustible and non-conductive, each containing not more than two (2) cells. Each cell weighs 0.905 kg and has a nominal capacity of 231 Wh.

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(2) Intermediate Packaging - Fiberboard box containing not more than five (5) inner packagings stacked vertically with an additional empty inner packaging on top of the stack.

(3) Outer Packaging - UN 4D plywood box, meeting the Packing Group I performance criteria, containing not more than four (4) intermediate packagings.

(4) The net weight of cells in a package may not exceed 36.2 kg.

d. MARKING - Each package covered under the terms of this special permit must be durably and legibly marked and displayed on a background of contrasting color with "DOT-SP 20389."

9. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained and made available for examination at each facility where the materials are packaged and offered or reoffered for transportation

c. This special permit in no way affects the need to obtain any required authorizations from other agencies of the United States Government or from the competent authorities of countries of origin, transit and destination.

d. The special permit holder must maintain a record of all activity conducted under the authority granted in this special permit.

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e. The record must contain a complete listing and number of shipments made to include:

(1) Dates of Shipment.

(2) Description of each type of shipment (to include origination/destination).

f. All of the above information must be made available upon request to a DOT representative or an enforcement Official.

g. A cell that is determined to be defective, may not be shipped under this special permit.

10. MODES OF TRANSPORTATION AUTHORIZED: Cargo-only aircraft.

11. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo aircraft, or motor vehicle used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.

12. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including

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display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

13. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Andrew Eckenrode